MASTER SERVICES AGREEMENT

between
Aurelia Therapeutics, Inc.
and
Lucca Biologics, Inc.

This Master Services Agreement (this "**Agreement**") is entered into as of March 1, 2025 (the "**Effective Date**") by and between **Aurelia Therapeutics, Inc.**, a Delaware corporation with its principal place of business at 1200 Harbor Point Drive, South San Francisco, California 94080 ("**Client**"), and **Lucca Biologics, Inc.**, a Delaware corporation with its principal place of business at 85 Meridian Parkway, Durham, North Carolina 27713 ("**Provider**"). Client and Provider are each referred to as a "**Party**" and together as the "**Parties**."

WHEREAS, Client is a clinical-stage biotechnology company engaged in the research and development of vaccine candidates;

WHEREAS, Provider is a contract development and manufacturing organization with expertise in process development, analytical testing, and the manufacture of biologic drug substance under current Good Manufacturing Practices; and

WHEREAS, Client desires to engage Provider to perform certain services from time to time, and Provider desires to perform such services, on the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

1.1 "**Affiliate**" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where "control" means ownership of more than fifty percent (50%) of the voting securities of such entity.

1.2 "**Applicable Law**" means all laws, regulations, and guidance of any governmental authority that apply to the performance of the Services, including current Good Manufacturing Practices ("**cGMP**").

1.3 "**Background IP**" means all intellectual property owned or controlled by a Party before the Effective Date or developed by a Party outside the scope of this Agreement.

1.4 "**Client Materials**" means all materials, cell lines, reagents, documentation, and information provided by or on behalf of Client to Provider in connection with this Agreement.

1.5 "**Confidential Information**" has the meaning given in Section 7.1.

1.6 "**Deliverables**" means all data, reports, batch records, materials, and other items that Provider is required to deliver to Client under a Statement of Work.

1.7 "**Quality Agreement**" means the quality agreement between the Parties governing the quality-related responsibilities for the Services, as amended from time to time.

1.8 "**Services**" means the services described in each Statement of Work.

1.9 "**Statement of Work**" or "**SOW**" means a written statement of work executed by both Parties that references this Agreement and describes the Services, Deliverables, timeline, and fees for a particular project.

1.10 "**Work Product**" means all inventions, discoveries, data, results, processes, and improvements conceived, developed, or reduced to practice by Provider in the performance of the Services.

2. SERVICES AND STATEMENTS OF WORK

2.1 *Performance of Services.* Provider shall perform the Services described in each SOW in a professional and workmanlike manner, in accordance with this Agreement, the applicable SOW, the Quality Agreement, and Applicable Law.

2.2 *Statements of Work.* Each SOW shall be incorporated into and governed by this Agreement. Each SOW shall describe, at a minimum, the scope of Services, the Deliverables, the project timeline, and the fees and payment schedule for such Services.

2.3 *Order of Precedence.* In the event of any conflict between this Agreement and any SOW, the terms of this Agreement shall control, unless the SOW expressly identifies the specific Section of this Agreement to be superseded and states that such Section is superseded solely for purposes of that SOW. In the event of any conflict between this Agreement and the Quality Agreement with respect to quality matters, the Quality Agreement shall control.

2.4 *Change Orders.* Either Party may request a change to the scope, timeline, or fees of an SOW. No change shall be effective unless set forth in a written change order executed by authorized representatives of both Parties (a "**Change Order**").

2.5 *Subcontracting.* Provider shall not subcontract any portion of the Services without Client's prior written consent. Provider shall remain responsible for the performance of any permitted subcontractor.

3. CLIENT MATERIALS

3.1 Client shall provide the Client Materials reasonably necessary for Provider to perform the Services. Client Materials shall remain the sole property of Client. Provider shall use Client Materials solely to perform the Services and shall store and handle them in accordance with the Quality Agreement.

3.2 Upon completion or termination of an SOW, Provider shall, at Client's election, return or destroy all unused Client Materials and certify such return or destruction in writing.

4. FEES, INVOICING, AND PAYMENT

4.1 *Fees.* Client shall pay Provider the fees set forth in each SOW. Unless otherwise stated in an SOW, fees are exclusive of applicable sales, use, and value-added taxes.

4.2 *Invoicing.* Unless otherwise specified in an SOW, Provider shall invoice Client monthly in arrears for Services performed during the preceding month. Each invoice shall reference the applicable SOW and include reasonable supporting detail.

4.3 *Payment Terms.* Client shall pay each undisputed invoice within forty-five (45) days after Client's receipt of such invoice. All payments shall be made in US dollars by wire transfer or ACH to the account designated by Provider in writing.

4.4 *Disputed Amounts.* If Client disputes any portion of an invoice in good faith, Client shall notify Provider in writing within fifteen (15) days after receipt, specifying the basis of the dispute, and shall pay the undisputed portion in accordance with Section 4.3. The Parties shall work in good faith to resolve any disputed amounts promptly.

4.5 *Late Payment.* Undisputed amounts not paid when due shall accrue interest at the rate of one percent (1%) per month, or the maximum rate permitted by law, whichever is lower.

4.6 *Expenses.* Client shall reimburse Provider for reasonable, pre-approved, out-of-pocket expenses incurred in performing the Services, invoiced at cost without markup.

5. TERM AND TERMINATION

5.1 *Term.* This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years (the "**Initial Term**"). Thereafter, this Agreement shall automatically renew for successive one (1) year periods (each, a "**Renewal Term**") unless either Party provides written notice of non-renewal at least ninety (90) days before the end of the then-current term.

5.2 *Termination for Convenience.* Client may terminate this Agreement or any SOW for any reason upon ninety (90) days' prior written notice to Provider.

5.3 *Termination for Cause.* Either Party may terminate this Agreement or any SOW upon written notice if the other Party materially breaches this Agreement or such SOW and fails to cure such breach within thirty (30) days after receiving written notice describing the breach in reasonable detail.

5.4 *Termination for Insolvency.* Either Party may terminate this Agreement immediately upon written notice if the other Party becomes insolvent, makes a general assignment for the benefit of creditors, or becomes the subject of any bankruptcy proceeding that is not dismissed within sixty (60) days.

5.5 *Effect of Termination.* Upon any termination, Provider shall promptly deliver to Client all completed and in-progress Deliverables, and Client shall pay Provider for Services properly performed and non-cancellable commitments reasonably incurred through the effective date of termination. Termination of this Agreement shall not affect any SOW then in effect unless expressly stated in the notice of termination, and this Agreement shall continue to govern any such SOW until its completion or termination.

5.6 *Survival.* Sections 3, 4 (with respect to amounts accrued), 5.5, 5.6, 7, 8, 10, 11, and 13 shall survive any expiration or termination of this Agreement.

6. QUALITY AND COMPLIANCE

6.1 Provider shall perform all manufacturing and testing Services in compliance with cGMP, the Quality Agreement, and Applicable Law. Provider shall maintain all facilities, equipment, and personnel licenses and registrations required to perform the Services.

6.2 Provider shall permit Client and its designees, upon reasonable prior notice and during normal business hours, to audit Provider's facilities, records, and procedures relating to the Services, not more than once per calendar year except for cause.

6.3 Provider shall notify Client within two (2) business days after becoming aware of any regulatory inspection, inquiry, or action relating to the Services.

7. CONFIDENTIALITY

7.1 *Definition.* "**Confidential Information**" means all non-public information disclosed by or on behalf of one Party (the "**Disclosing Party**") to the other Party (the "**Receiving Party**") in connection with this Agreement, whether disclosed orally, visually, or in writing, that is marked as confidential or that a reasonable person would understand to be confidential. All Work Product and Client Materials are Client's Confidential Information.

7.2 *Obligations.* The Receiving Party shall (a) use the Disclosing Party's Confidential Information solely to perform its obligations or exercise its rights under this Agreement, (b) not disclose such

Confidential Information to any third party except to its employees, consultants, and permitted subcontractors who need to know it and are bound by written obligations at least as protective as those set forth herein, and (c) protect such Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

7.3 *Exclusions.* Confidential Information does not include information that the Receiving Party can demonstrate (a) is or becomes publicly available through no fault of the Receiving Party, (b) was lawfully known to the Receiving Party before disclosure, (c) is lawfully received from a third party without restriction, or (d) is independently developed without use of the Disclosing Party's Confidential Information.

7.4 *Compelled Disclosure.* The Receiving Party may disclose Confidential Information to the extent required by law or court order, provided that it gives the Disclosing Party prompt written notice (where legally permitted) and reasonable assistance in seeking a protective order.

7.5 *Duration.* The obligations in this Section 7 shall continue during the term of this Agreement and for seven (7) years thereafter; provided that obligations with respect to trade secrets shall continue for so long as such information remains a trade secret under Applicable Law.

8. INTELLECTUAL PROPERTY

8.1 *Background IP.* Each Party shall retain all right, title, and interest in and to its Background IP. Nothing in this Agreement grants either Party any right in the other Party's Background IP except as expressly set forth herein.

8.2 *Work Product.* All Work Product and Deliverables shall be the sole and exclusive property of Client. Provider hereby assigns, and shall cause its personnel and permitted subcontractors to assign, to Client all right, title, and interest in and to all Work Product and Deliverables. Provider shall execute such documents and take such actions as Client may reasonably request to perfect Client's ownership.

8.3 *License to Provider Background IP.* To the extent any Provider Background IP is incorporated into any Deliverable or is necessary to use any Work Product, Provider hereby grants Client a non-exclusive, perpetual, irrevocable, worldwide, royalty-free license, with the right to sublicense, to use such Provider Background IP solely in connection with such Deliverable or Work Product.

9. REPRESENTATIONS AND WARRANTIES

9.1 *Mutual.* Each Party represents and warrants that (a) it is duly organized and in good standing under the laws of its jurisdiction of organization, (b) it has full power and authority to enter into and perform this Agreement, and (c) its performance of this Agreement will not violate any agreement with any third party.

9.2 *Provider.* Provider represents and warrants that (a) the Services shall be performed by qualified personnel in accordance with industry standards and Applicable Law, (b) all Deliverables shall conform to the specifications set forth in the applicable SOW, and (c) neither Provider nor any of its personnel performing the Services has been debarred or is the subject of debarment proceedings by any governmental authority.

9.3 *Disclaimer.* EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY OTHER WARRANTY, EXPRESS OR IMPLIED, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

10. INDEMNIFICATION

10.1 *By Provider.* Provider shall indemnify, defend, and hold harmless Client, its Affiliates, and their respective officers, directors, employees, and agents from and against any and all losses, damages, liabilities, costs, and expenses, including reasonable attorneys' fees (collectively, "**Losses**"), arising out of any third-party claim to the extent resulting from (a) Provider's breach of this Agreement, (b) the negligence or willful misconduct of Provider or its personnel, or (c) any allegation that the Services, the Deliverables, or any Provider Background IP infringe or misappropriate the intellectual property rights of a third party.

10.2 *By Client.* Client shall indemnify, defend, and hold harmless Provider, its Affiliates, and their respective officers, directors, employees, and agents from and against any and all Losses arising out of any third-party claim to the extent resulting from (a) Client's breach of this Agreement, (b) the negligence or willful misconduct of Client or its personnel, or (c) any allegation that the Client Materials, when used by Provider in accordance with this Agreement, infringe or misappropriate the intellectual property rights of a third party.

10.3 *Procedure.* The Party seeking indemnification shall (a) promptly notify the indemnifying Party in writing of the claim, provided that any delay shall relieve the indemnifying Party of its obligations only to the extent it is materially prejudiced thereby, (b) permit the indemnifying Party to control the defense and settlement of the claim, provided that no settlement imposing any obligation or admission on the indemnified Party may be made without its prior written consent, and (c) provide reasonable cooperation at the indemnifying Party's expense.

11. LIMITATION OF LIABILITY

11.1 *Exclusion of Certain Damages.* EXCEPT WITH RESPECT TO THE EXCLUDED CLAIMS (AS DEFINED BELOW), IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS OR REVENUE, ARISING

OUT OF OR RELATING TO THIS AGREEMENT, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY.

11.2 *Cap on Liability.* EXCEPT WITH RESPECT TO THE EXCLUDED CLAIMS, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT AND ALL STATEMENTS OF WORK SHALL NOT EXCEED TWO MILLION FIVE HUNDRED THOUSAND US DOLLARS ($2,500,000).

11.3 *Excluded Claims.* The limitations in Sections 11.1 and 11.2 shall not apply to (a) a Party's indemnification obligations under Section 10, (b) a Party's breach of Section 7 (Confidentiality), or (c) a Party's gross negligence, fraud, or willful misconduct (collectively, the "**Excluded Claims**").

12. INSURANCE

12.1 During the term of this Agreement and for three (3) years thereafter, Provider shall maintain, at its own expense, (a) commercial general liability insurance with limits of not less than $2,000,000 per occurrence and $5,000,000 in the aggregate, (b) products liability insurance with limits of not less than $5,000,000 in the aggregate, and (c) workers' compensation insurance as required by Applicable Law. Provider shall provide certificates of insurance upon Client's request.

13. GENERAL

13.1 *Governing Law.* This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

13.2 *Venue.* Each Party irrevocably submits to the exclusive jurisdiction of the state and federal courts located in the State of Delaware for any action arising out of or relating to this Agreement.

13.3 *Notices.* All notices under this Agreement shall be in writing and delivered by hand, by nationally recognized overnight courier, or by email with confirmation of receipt, to the addresses set forth in the preamble (or such other address as a Party designates by notice). Notices to Client shall be sent to the attention of the General Counsel. Notices to Provider shall be sent to the attention of the Chief Business Officer.

13.4 *Assignment.* Neither Party may assign this Agreement without the prior written consent of the other Party, except that either Party may assign this Agreement without consent to an Affiliate or to a successor in connection with a merger, acquisition, or sale of all or substantially all of the assets to which this Agreement relates, provided the assignee agrees in writing to be bound by this Agreement.

13.5 *Independent Contractors.* The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.

13.6 *Force Majeure.* Neither Party shall be liable for any delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control, provided that the affected Party promptly notifies the other Party and uses commercially reasonable efforts to resume performance.

13.7 *Entire Agreement; Amendment.* This Agreement, together with all SOWs and the Quality Agreement, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements and understandings. This Agreement may be amended only by a written instrument executed by authorized representatives of both Parties.

13.8 *Severability; Waiver.* If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect. No waiver of any provision shall be effective unless in writing, and no failure or delay in exercising any right shall operate as a waiver.

13.9 *Counterparts.* This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original and all of which together shall constitute one instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date.

AURELIA THERAPEUTICS, INC.

Name: Elena Moretti
Title: General Counsel
Date: March 1, 2025

LUCCA BIOLOGICS, INC.

Name: Daniel Okafor
Title: Chief Business Officer
Date: March 1, 2025

Sample agreement created for the Al Dente portfolio project. All companies, people, and addresses are fictional. Not legal advice and not a template for actual use.